

The State By Kamakshipalya vs A1. Srinath on 23 January, 2023

IN THE COURT OF XXXIX ACMM, BENGALURU

Present : Sandesh Prabhu.B. BA(LAW), LL.B.

XXXIX ACMM, Bengaluru,

C.C.No.6634/2011

Dated : On this the 23rd January, 2023

Complainant: The State by Kamakshipalya
Police Station, Bengaluru
(By Senior Assistant Public Prosecutor)

V/s

Accused: A1. Srinath,
S/o Ravichandran,
Aged about 33 years,
R/at No.20, Own house,
3rd Main, Minakshinagara,
Kamakshipalya, Bengaluru.

A2. Smt. Vijayakumari,
C/o Late Ravichandran,
Aged about 60 years,
R/at No.20,3rd Main,
Minakshinagara,
Kamakshipalya, Bengaluru.

A3. Smt. Pirya Ravichandran,
C/o Anand,
Aged about 34 years,
R/at No.11/2, 1st Cross,
MRI Layout, Ramamurthy Nagar,
Bengaluru.

(By Sri. Shankar and Associates Advocate)

Date of commission of offence : 26.12.2010

Date of report of the offence : 26.12.2010

Name of the Complainant : Smt.Shakuntala Srinath

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Date of Commencement of
recording of Evidence : 19.10.2013

Date of Closing of evidence : 04.07.2022
Offences complained are : u/s 498(A), 506 r/w 34
of IPC & Sec.3& 4 of
D.P. Act

Opinion of the Judge : Accused found not
guilty

(Sandesh Prabhu B.)
XXXIX ACMM, Bengaluru

-:: JUDGEMENT ::-

The PSI of Kamakshipalya Police Station has filed charge sheet against accused No.1 to 3 for the offences punishable u/s 498(A), 506 r/w 34 of IPC and Sec.3 and 4 of D.P. Act.

2. The case of the prosecution in nutshell is as follows :-

The marriage of the complainant was took place alongwith the accused on 06.09.2009 as per the Hindu rites and customs. During the marriage negotiation since the accused No.1 was working in a reputed company, the accused demanded with the CW2 and CW4 to give 60 savaran gold ornaments as dowry. As
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per the said demand the CW2 to 4 have agreed to give 50 savaran of gold ornaments and they agreed to give 25 savaran gold ornaments at the time of marriage and remaining 25 savaran of gold ornaments after the marriage and spent Rs.3,50,000/- for the marriage expenses and performed the marriage at Satyanarayana Kalyana Mantapa, Dommaluru.

3. It is the further allegation against the accused that, after the marriage when the complainant started living in her matrimonial house situated at House No.20, 3rd Main, Minakshinagar, Kamakshipalya, Bangalore along with the accused, when the accused

came to know that, the mother of the complainant leased out her house for a sum of Rs.7,65,000/- and after coming to know about the said fact, the accused demanded with the complainant to bring the said lease amount in order to repay the loan borrowed by them for construction of the house. It is also the allegation against the accused that, they were demanding to bring remaining 25 savaran of gold ornaments and also

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demanding with the complainant to give her entire salary to them and also abusing her in filthy language by saying that, she is not fair to look and her stomach is fatty and after her marriage there was loss to them and was also not providing food to her.

4. It is the further allegation against the accused that, even though the panchayath was convened between the complainant and accused and CW2 to CW4 have assured that, they will give the remaining gold ornaments during the up coming Depavali Festival, but the accused without hearing the said assurance, on 10.11.2010 at about 11.45 am when the complainant came to the house of the accused along with her baby, the accused picked up quarrel with her and told her to stay in her parents house until she brings the amount and the car as dowry and if she comes back without bringing the amount they will kill her. Therefore

complainant gave complaint against the accused.

5. The complaint was registered against the
accused No.1 to 3 for the punishable u/s 498(A), 506
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r/w 34 of IPC and Sec.3 and 4 of D.P. Act and after
investigation has filed charge sheet against the accused
persons for the aforesaid offence. During crime stage
itself the accused persons were produced before the
court and subsequently they were enlarged on bail.
After filing charge sheet, the predecessor in office has
taken cognizance of the offences against the accused
persons and summons was issued to accused persons.
In pursuance of the summons the accused persons
appeared before the court.

6. Thereafter charge sheet copies were furnished to
the accused persons as contemplated u/s 207 of
Cr.P.C. Thereafter heard the learned prosecution and
counsel for the accused persons about framing of
charge. Since there were sufficient materials to frame
charge against the accused persons, charges were
framed u/s 498(A), 506 r/w 34 of IPC and Sec.3 and 4
of D.P. Act. The sum and substance of the accusation
was read over to the accused persons and their answers
to the said accusation was denial and they claimed to
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be tried. Hence, the prosecution was given an
opportunity to establish the guilt of the accused

persons.

7. The prosecution to establish the guilt of the accused it got examined 4 witnesses as PW1 to 4 and got marked documentary evidence as per Ex.P1 to Ex.P72. The prosecution has failed to examine the remaining cited witnesses and their evidence was dropped by this court. The accused counsel during cross examination of PW1 got confronted Ex.D.1 to Ex.D.10.

8. After completion of prosecution evidence, statement of the accused persons as contemplated u/s 313 of Cr.P.C was recorded. Their answer to the incriminating circumstances arised in the evidence was denial and not chosen to lead any defence evidence.

9. Heard the arguments of learned prosecution and counsel for accused.

10. The points that arise for consideration of this Court are as under :

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--: POINTS :-

1.

Whether the prosecution proves beyond all reasonable doubt that the marriage of the CW1 was took place alongwith the accused on 06.09.2009 as per the Hindu rites and customs and during the marriage negotiation since the accused No.1 was working in a reputed company, the accused demanded with the CW2 and CW4 to give 60 savaran gold ornaments as dowry. As per the said demand the CW2 to 4 have agreed to give 50 savaran of gold ornaments and they agreed to give 25 savaran gold ornaments at the time of marriage and remaining 25 savaran of gold ornaments after the marriage and spent Rs.3,50,000/□for the marriage expenses and performed the marriage at Satyanarayana Kalyana Mantapa, Dommalluru and thereby accused committed an offence

punishable U/Sec.3 of D.P. Act?

2. Whether the prosecution further proves beyond all reasonable doubt that on the same date, time and during the same transaction, after the marriage when the CW1 started living in her matrimonial house situated at House No.20, 3rd Main, Minakshinagar, Kamakshipalya, Bangalore along with the accused and when the accused going to know that, the mother of the CW1 leased out her house for a sum of Rs.7,65,000/□and after going to know about the said fact, the accused demanded the CW1 to bring the said lease amount in order to repay the loan borrowed by them for construction of the house and further the accused have demanded to bring remaining 25 savaran of gold ornaments and also demanded with the CW1 to give her entire salary to them and thereby committed an offence punishable U/Sec. 4 of D.P. Act?

3. Whether the prosecution further proves beyond all reasonable doubt that, the accused with common intention abused the complainant in filthy language by saying that, she is not fair to look and her stomach is fatty and after her marriage there was loss to them and was also not providing food to her. Even though the panchayath was convened between the CW1 and accused and the CW2 to CW4 have assured that, they will give the remaining gold ornaments during the up coming Depavali Festival, but the accused without hearing the said assurance, on 10.11.2010 at about 11.45 am when the CW1 came to the house of the accused along with her baby, the accused picked up quarrel with her and told her to stay in her parents house until she brings the amount and the car as dowry and there gave mental and physical torture to her and thereby committed an offence punishable U/Sec. 498(A) r/w 34 of IPC?

4. Whether the prosecution further proves beyond all reasonable doubt that on the same date, time and during the same transaction, the accused with common intention gave life threat to the CW1 by saying that, "if she comes back without bringing the amount they will kill her"

5. and thereby committed an offence
 punishable U/Sec. 506 r/w 34 of IPC
 What Order?

11. The findings of this Court on above points are as under:□Point No.1 to 4: In Negative Point No.5 : As per the final order for the following:□REASONS

12. POINT No.1 to 4 :□All these points are connected each other and in order to avoid the repetition of the said facts and appreciation of the evidence, all these points are taken up together for common consideration.

13. It is the specific case of the prosecution that, the marriage of the complainant was took place alongwith the accused on 06.09.2009 as per the Hindu rites and customs. During the marriage negotiation since the accused No.1 was working in a reputed company, the accused demanded with the CW2 and CW4 to give 60 savaran gold ornaments as dowry. As per the said demand the CW2 to 4 have agreed to give 50 savaran of gold ornaments and they agreed to give 25 savaran gold

ornaments at the time of marriage and remaining 25 savaran of gold ornaments after the marriage and spent Rs.3,50,000/□for the marriage expenses and performed the marriage at Satyanarayana Kalyana Mantapa, Dommalluru. It is the further allegation against the accused that, after the marriage when the complainant started living in her matrimonial house situated at House No.20, 3rd Main, Minakshinagar, Kamakshipalya, Bangalore along with the accused, when the accused came to know that, the mother of the complainant leased out her house for a sum of Rs.7,65,000/□ and after coming to know about the said fact, the accused demanded with the complainant to bring the said lease amount in order to repay the loan borrowed by them for construction of the house. It is also the allegation against the accused that, they were demanding to bring remaining 25 savaran of gold ornaments and also demanding with the complainant to give her entire salary to them and also abusing her in filthy language by saying that, she is not fair to look and her stomach is fatty and after her marriage there was loss to them and was also not providing food to her. It is the further allegation against the accused that, even though the panchayath was convened between the complainant and accused and CW2 to CW4 have assured that, they will give the remaining gold ornaments during the up coming Depavali Festival, but the accused without hearing the said assurance, on 10.11.2010 at about 11.45 am when the complainant came to the house of the accused along with her baby, the accused picked up quarrel with her and told her to stay in her parents house until she brings the amount and the car as dowry and if she comes back without bringing the amount they will kill her. Therefore complainant gave complaint against the accused.

14. The prosecution to establish the alleged guilt of the accused it got examined only four witnesses as PW1 to PW4. PW1 is the complainant/victim, PW2 is the PSI who conducted the investigation and filed charge sheet against the accused, PW3 is the PSI who registered the case against the accused and PW4 is the police constable who arrested the accused. Along with oral, the prosecution has produced and got marked 72 documentary evidence as per Ex.P.1 to Ex.P.72 and relevancy of said documents will be discussed at the relevant point of discussion. The accused counsel during cross examination of victim / PW1 has confronted and got marked ten documents as per Ex.D.1 to Ex.D.10.

15. Now it is necessary to analyse the oral evidence of prosecution witnesses. The prosecution got examined the victim as PW1 who deposed that, her marriage was took place along with the accused No.1 on 06.09.2009 at Suryanarayana Kalyana Mantapa, Dommalluru. Before the marriage the accused came to their house and there was marriage negotiation and the accused demanded to give 60 savaran of gold ornaments as dowry. The witness further deposed that when her mother refused to give so much dowry, as per the negotiation, her mother had agreed to give 50 savaran of gold ornaments and agreed to give 25 savaran of gold ornaments at the time of marriage and remaining 25 savaran of gold ornaments at the time of Deepavali Festival. The witness further deposed that her mother had also given five savarans of gold chain and two savarans of ring to the accused No.1. The witness further deposed that, after the marriage she started living in her matrimonial house and she lived there for one year and due to the marital life with the accused No.1 she gave birth to a male child.

16. The witness further deposed that, one month after the marriage the accused started demanding to bring Rs.7,60,000/□from her mother and also demanding to give her salary to them. The witness

further deposed that, the accused were also demanding to give money to repay the loan amount and they were also not providing food and cloths to her. The witness further deposed that, the accused were assaulting to her for silly reasons and the accused No.3 by showing a knife told her that, she will kill her. The witness further deposed that, after the marriage during first Dipavali Festival her mother had given 15 savarans of gold ornaments to the accused and told to the accused that the remaining ornaments will be given soon. The witness further deposed that, when she attempted to commit suicide the accused informed the said fact to the Police Commissioner and there was panchayath convened between herself and accused which went in vain.

17. The witness further deposed that, the accused No.1 given a reply before the police that, he will file petition for divorce. The witness further deposed that, on 10.07.2010 she gave birth to a male child and even if she waited for two months in order to take her to matrimonial house, the accused did not take back her to the matrimonial house and therefore on 10.11.2010 she alongwith her sister and mother went to the house of the accused and the accused told that, without bringing the remaining ornaments and also not giving money for repayment of loan, they should not come to the matrimonial house and if they come again without bringing the additional dowry they will kill her. The witness further deposed that, thereafter she filed complaint as per Ex.P.1 and further deposed about producing of document as per Ex.P.1 to Ex.P.70. The accused counsel subjected this witness for elaborate cross examination.

18. The prosecution further got examined PW2 who is Police Inspector who conducted the investigation and filed charge sheet against the accused. The said witness deposed about drawing of panchanama in the place of incident, recording of statement of witnesses, arresting of the accused and thereafter filing of charge sheet after completion of investigation. The accused counsel subjected this witness for cross examination.

19. The prosecution further got examined PW3 who is the PSI who deposed about registering of FIR. The accused counsel subjected this witness for cross examination.

20. Lastly the prosecution got examined PW4 who is the Police Constable who deposed about arresting of the accused on 12.11.2010. The accused counsel subjected this witness for cross examination.

21. In a matter like matrimonial dispute which took place within the four corner of the house, the evidence of victim will play important role. In the present case the prosecution to establish the guilt of the accused has relied upon only the evidence of victim who is the PW1. Even though the prosecution has cited CW2 to CW6 as the witnesses to the alleged incident, the prosecution has miserably failed to examine those material witnesses before the court. The only evidence available to the prosecution to establish the guilt of the accused is the evidence of victim who is PW1.

22. Now it is necessary to analyse the oral evidence of victim in order to conclude about the allegation made against the accused. The first and foremost allegation made against the accused is that, at the time of marriage the accused No.1 to 3 demanded to give 60 savarans of gold ornaments as dowry with CW2 to 4 and as per the negotiation they agreed to give 50 savarans of gold

ornaments and as per the negotiation 25 savarans of gold ornaments were agreed to be given at the time of marriage and the remaining 25 savaran gold ornaments will be given at the time of first Dipavali Festival after the marriage. It is also the case of the prosecution that, as per the demand, the CW2 to CW4 have given 25 savarans of gold ornaments at the time of marriage and subsequently the CW2 who is the mother of the victim had also given 15 savarans of gold ornaments at the time of first Dipavali Festival. The burden lies upon the prosecution to establish about the demanding of dowry and giving of same as alleged in the complaint. The prosecution to establish the said fact, it relied upon the evidence of victim who is PW1. The PW1 who is the victim in her examination in chief deposed about the said fact stated in her complaint. Further on perusal of the examination in chief deposed by victim dated 11.11.2014 she deposed that, the accused No.1 and 2 had taken Rs.30,000/- from her and she also gave another Rs.30,000/- to the accused No.1 for purchasing cloths at the time of marriage. Even though the PW1 has deposed the said fact in her further examination in chief dated 11.11.2014, but the said fact has not been stated by the complainant in her complaint. The complainant never given her further statement by stating about the said fact. On perusal of the cross examination of the victim by the accused counsel she categorically deposed that, her mother and sister who are CW2 and CW3 were present when the marriage negotiation was took place, but the prosecution has failed to examine the said two witnesses who present when the said marriage negotiation was took place. Further the PW1 during her cross examination dated 06.09.2018 deposed that, her mother got document to show that, she purchased 50 savarans of gold and silver articles and the said documents could be produced before the court and she has produced those documents before the court. Even though the PW1 has deposed the said fact, but no documents have been produced before the court about purchasing of those ornaments.

23. The PW1 further during her cross examination deposed that, there is no document to show that the accused had demanded ornaments as dowry, but there is photography to show that, they have gave ornaments to the accused. The victim has produced the marriage videos before the court by producing CD as per Ex.P.60 and on perusal of those videos and also the marriage photographs produced as per Ex.P.44, Ex.P.48 to Ex.P.53, no doubt some photographs shows about wearing of some ornaments to the accused, but those photographs are not sufficient to conclude that, there was demand made by the accused to give the ornaments to the accused No.1 as dowry. Merely on the basis of the photographs and the videos produced by the victim, it cannot be concluded that, there was demand by the accused unless those photographs are supported by corroborative evidence that, there was demand by the accused to give such ornaments.

24. As it is discussed above the PW2 and PW3 who are the mother and sister of the victim are the best piece of evidence who present when the marriage negotiation was took place in order to deposed about the demand of dowry made by the accused. The prosecution has failed to examine the said two material witnesses before the court. When the victim has categorically deposed that, she got documents about purchase of those ornaments and when the victim has not produced those documents before the court, merely on the basis of oral evidence of victim, it cannot be concluded about the giving such gold ornaments as dowry to the accused. Moreover the prosecution has not made any attempt to examine the persons who present when the alleged dowry was given to the accused. Therefore there are no materials to come to the conclusion about the alleged dowry

received by the accused.

25. It is the further allegation against the accused that, when the complainant after the marriage started living in her matrimonial house situated at House No.20, 3rd Main Road, Minakshinagar, the accused No.1 to 3 by coming to know that, the mother of the complainant had given her house for lease and got an amount of Rs.7,65,000/□ the accused asked with the complainant to bring the said amount in order to repay the loan obtained by the accused for the purpose of construction of the house. The PW1 in her examination in chief also reiterated the said fact. Except the said oral evidence of PW1 that her mother had got Rs.7,65,000/□by leasing out of her house, the complainant has not produced any document before the court to show that, her mother had obtained so much of amount by leasing the house. Therefore there is no materials produced by the prosecution to establish the said allegation made against the accused.

26. It is also the further allegation against the accused that, when the complainant was residing along with the accused they were demanding to give entire salary amount of the complainant and also to give one car for travel and when the complainant refused for the same, the accused started giving physical and mental cruelty to the complainant by saying that, she is not look fare, her stomach is fatty and was not giving proper food to her. The PW1 who is the victim in her examination in chief reiterated the said fact. Along with the oral evidence, the complainant has produced a copy of bank statement as per Ex.P.19 and on perusal of the said Ex.P.19 there is transfer of amount of Rs.16,000/□to the bank account of the accused No.1 on 02.09.2009, 07.10.2009, 04.11.2009, 14.12.2009, 04.01.2010. The said bank statement of the complainant shows about transferring of some amount to the account of the accused No.1 and on perusal of the oral evidence of the victim, it is the defence of the accused that, the accused No.1 was looking after the expenses of the house and when they were residing together, they were sharing the expenses of the house. On perusal of the cross examination of victim dated 31.01.2020 she has deposed that, she was looking after the expenses of the house and the accused was paying loan installments obtained for construction of the house. Therefore even though as per Ex.P.19 there was transfer of some amount as stated above from the bank account of the complainant to the bank account of the accused No.1, but based on the oral evidence of victim herself, it cannot be conclude that, the said amount was received by the accused as dowry. The oral evidence of victim itself reveals that, she was giving the said amount for the maintenance of the house and they were sharing the maintenance of the house since complainant was going for work when she was residing along with the accused No.1.

27. Further on careful perusal of the oral and documentary evidence of the victim, she deposed some facts by making allegation against the accused No.1 that, he sent some E□mails to her and the victim has produced the copy of said E□mails sent to her by the accused as per Ex.P.18 and on careful perusal of said Ex.P.18, the accused No.1 has not sent any such E□mails which causes physical and mental cruelty to the complainant.

28. Further on perusal of the cross examination of the victim, she deposed that, the accused No.1 got illicit relationship with his sister□n□law. Except the said allegation, the accused has not produced any materials to establish the said fact before the court. Further the victim in her evidence deposed that, the accused No.1 got relationship with his female colleagues, but there is no materials

produced by the complainant or by the prosecution to establish the said fact deposed by the complainant.

29. Further on perusal of the cross examination of complainant who is the victim, she categorically admitted that, the accused No.1 had filed a petition for divorce in MC No.2841/2011 before family court and after four months of filing of said petition by the present accused, she filed the present complaint before the police station. The victim further admitted that, after one year of filing of the said divorce petition by the accused No.1, she filed another two petitions under Protection of Women from Domestic Violence Act. The relevant evidence of PW1 reads like this:□"

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By considering the said admission made by the victim, she filed the present complaint four months after the divorce petition filed by the accused No.1 and one year after filing of divorce petition by the accused No.1, the present complainant has filed two other petitions under D.V. Act. If really there was physical and mental cruelty to the complainant, she might have given the complaint immediately before filing the divorce petition by the accused No.1. Even though the victim in her cross examination deposed that, she did not file the complaint immediately since she intends to live alongwith the accused No.1, the said oral admission made by the victim shows that, there was no such physical and mental cruelty by the accused No.1 as alleged in the complaint, but there was some misunderstanding between them.

30. The accused counsel during cross examination of the victim got confronted the petitions and civil cases filed by the present complainant against the accused No.1. The accused counsel confronted the order passed in CrI.Misc.401/2011 filed by the present complainant against the accused No.1 and 2 as per Ex.D.1. On perusal of the said Ex.D.1 the present complainant had filed petition under the provisions of D.V. Act by making allegation of domestic violence on her by present accused, but the said petition was dismissed by MMTC□

5. On perusal of the said order passed as per Ex.D.1, it is observed that, there was no domestic violence as alleged by the present complainant. Further the accused counsel during cross examination of victim got confronted the plaint copy of suit filed by the present complainant in OS.6/2011 as per Ex.d.2 and also got confronted the judgment passed in OS.1527/2013 as per Ex.D.6. On perusal of the said Ex.D.2 and Ex.D.6 it reveals that, the present complainant had filed civil suit against the present accused No.1 by claiming partition and also by claiming injunction retaining the accused No.1 from alienating the property. The documents reveals that, both suits were dismissed by the City Civil and Sessions Court and also the family court. Further the present complainant had also filed another petition under D.V. Act in CrI.Misc.22/2011 by claiming the residential order and the said petition was also dismissed by the court. On careful perusal of the documents confronted by the accused counsel during cross examination of the victim, it shows that the victim had filed several petitions and also civil suits one after another against the accused, but those petitions were dismissed by the court. The filing of said petitions and civil suits shows that, the complainant intends to take revenge against the accused by filing one or other petitions. No doubt

the complainant has produced and got marked documents as per Ex.P.1 to Ex.P.70 before the court, but the said documents are not enough to conclude about the allegation of physical and mental cruelty as alleged by the complainant in her complaint. As it is discussed above the prosecution except examining the victim it has failed to examine the other witnesses who are the mother and sister of the complainant who are also the material witnesses to the case of the prosecution. If the prosecution had made out attempt to examine the said witnesses who are CW2 to CW5 then the entire truth might have come out. No doubt the victim in her oral evidence has made allegation against the accused, but there is no materials produced by the prosecution to establish the allegation made against the accused.

31. It is also alleged in the complaint that, when the complainant along with her mother and sister went to the house of the accused on 10.11.2010 the accused gave life threat to them by restraining them not to come inside the house without providing the dowry. Even though the victim in her oral evidence has deposed about the said fact, but except her oral evidence the prosecution has not produced any other materials to establish the said allegation made against the accused. The investigating officer has not made attempt to examine any of the neighbors of accused to establish the alleged incident which was took place on 10.11.2010. The CW2 and CW3 who are the mother and sister of the victim are most material witnesses to depose about the said incident which was alleged to have been took place on 10.11.2010. Since the said witnesses are not turn up before the court, this court comes to the conclusion that there is no materials to establish the said allegation of incident took place on said date.

32. On careful evaluation of entire oral and documentary evidence produced by the prosecution it shows that, there was some misunderstanding between the complainant and accused No.1 relating to matrimonial life, but there is no sufficient materials to conclude that, the accused gave physical and mental cruelty to the complainant. Therefore this court comes to the conclusion that, since there is no sufficient materials to establish the alleged act of the accused, the accused are entitled for benefit of doubt.

33. It is the cardinal rule of criminal jurisprudence that no man should be punished unless the guilt against him is proved beyond reasonable doubt. As it is discussed above the prosecution has failed to establish the guilt of the accused beyond reasonable doubt. The accused is entitle for benefit of doubt. Therefore this court comes to the conclusion that the prosecution has failed to establish that the accused has committed the offence punishable u/s 498(A), 506 r/w 34 of IPC and Sec.3 and 4 of D.P. Act. Hence for the said reasons this court answer point no.1 to 4 in negative.

34. POINT No.5: □ In view of discussion held on above points, this court proceeds to pass the following:

□: ORDER :: □ Acting under section 248 (1) of Cr.P.C., the accused No.1 to 3 are hereby acquitted for the offences punishable u/s 498(A), 506 r/w 34 of IPC and Sec.3 and 4 of D.P. Act.

The bail bonds of the accused persons and sureties shall stand cancelled. (Dictated to the stenographer, transcribed and typed by her and corrected by me and then pronounced in open Court on this the of 23rd January 2023) (Sandesh Prabhu B.) XXXIX ACMM, Bengaluru ANNEXURE

1. Witnesses examined on behalf of Prosecution PW❑ : Smt. Shakuntala Srinath W/o Srinath PW❑₂ : N. H. Ramachandraiah S/o Honnaiah PW❑₃ : B. G. Bettgowda S/o Late: Javaregowda PW❑₄ : V. Chandranna S/o Late Venkataramanappa

2. Documents exhibited on behalf of Prosecution Ex.P1 : Complaint Ex.P1(a) : Signature of PW1 Ex.P2 : Spot Panchanama Ex.P2(a) : Signature of PW❑ Ex.P3 : Invitation cardinal Ex.P4 & 5 : Photographs Ex.P6 : Matrimonial Bio❑Data Ex.P7 & 8 : Copy of Notices Ex.P9 to 12 : Copy of letters Ex.P13 to 15 ; Copy of Medical documents Ex.P16 : Copy of Certificate of registration of marriage Ex.P17 : Medical bills Ex.P18 : E❑mail messages Ex.P19 : Statement of account Ex.P20 : Letter relating to sanctioning of loan Ex.P21 : Copy of sale deed Ex.P22,23 : Birth certificates Ex.P24 : Copy of order sheet and judgment in MC.2841/2010 Ex.P25 : Copy of court notice Ex.P26 to 28 : E❑mail messages Ex.P29 : X❑ray report Ex.P30 : Photograph Ex.P31 : copy of birth certificate Ex.P32 : Medical report Ex.P33 to 35 ; Photographs Ex.P36 : Copy of complaint Ex.P37 : Photograph Ex.P38,39 : Copy of complaints Ex.P40,41 : Statements Ex.P42 : Copy of complaint Ex.P43 to68 : Photographs Ex.P69 : CDs Ex.P70, 71 : Statements Ex.P72 : FIR

3. Material objects exhibited on behalf of prosecution ❑NIL❑

4. List of witnesses and documents on Defense side Ex.D1 : Copy of order passed in CrI.Misc.

		401/2011
Ex.D2	:	Copy of plaint in OS.6/2011
Ex.D3	:	Copy of deposition in CrI.Misc. 401/2011
Ex.D4	:	Copy of deposition in CrI.Misc. 22/2011
Ex.D5	:	Copy of order sheet, application in CrI.Misc.158/2012
Ex.D6	:	Copy of plaint, evidence decree & judgment passed in OS.1527/2013
Ex.D7	:	Copy of order sheet, petition in MC.2183/2013
Ex.D8	:	Copy of judgment passed in CC.355/2013
Ex.D9	:	Copy of order sheet in CrI.Misc. 81/2014

Ex.D10 : Copy of petition in Cril.Misc.

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